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Title 33 —Navigation and Navigable Waters

Chapter I —Coast Guard, Department of Homeland Security

Subchapter J —Bridges

Part 115 Bridge Locations and Clearances; Administrative Procedures

- § 115.01** Purpose.
- § 115.05** Necessary primary authority.
- § 115.10** Sufficiency of State authority for bridges.
- § 115.15** Limiting date in permits.
- § 115.20** Permit bonds.
- § 115.30** Transfer of permits.
- § 115.40** Bridge repairs.
- § 115.50** Application for bridge permits.
- § 115.60** Procedures for handling applications for bridge permits.
- § 115.70** Advance approval of bridges.

PART 115—BRIDGE LOCATIONS AND CLEARANCES; ADMINISTRATIVE PROCEDURES

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Source: CGFR 67-46, 32 FR 17771, Dec. 12, 1967, unless otherwise noted.

§ 115.01 Purpose.

This part states the requirements for applying for a permit to construct or modify bridges crossing the navigable waters of the United States. It also sets forth the procedures by which the application is processed by the Coast Guard.

[CGD 82-006, 47 FR 36641, Aug. 23, 1982, as amended by USCG-2012-0306, 77 FR 37314, June 21, 2012]

§ 115.05 Necessary primary authority.

For bridges constructed by State or municipal agencies, the primary authority will be presumed without proof. If the law of the State requires a license for or approval of the bridge from a constituted State agency, a copy of such license or approval will be required and may be accepted as evidence of the primary authority. If there is no State regulation of bridges in navigable waters, the necessary primary authority may be that granted in the charter of a corporation, or the authority inherent in the ownership of the land on which the structure is placed. The applicant will in such cases be required to furnish an excerpt from the charter, or a statement of ownership. Special care will be taken that Federal approval is not granted when there is doubt of the right of the applicant to construct and utilize the bridge.

[CGFR 67-46, 32 FR 17771, Dec. 12, 1967, as amended by USCG-2011-0257, 76 FR 31836, June 2, 2011; USCG-2012-0306, 77 FR 37314, June 21, 2012; USCG-2016-0498, 82 FR 35081, July 28, 2017]

§ 115.10 Sufficiency of State authority for bridges.

An opinion of the attorney general of the State as to the sufficiency of State authority for the construction of a bridge is acceptable to the Coast Guard in doubtful cases.

[CGFR 67-46, 32 FR 17771, Dec. 12, 1967. Redesignated by USCG-2016-0498, 82 FR 35081, July 28, 2017]

§ 115.15 Limiting date in permits.

- (a) Specific time limitations are inserted in all permits for the commencement of construction and completion thereof. Normally three years for start of construction and two additional years for completion may be allowed.
- (b) Specific time limitations are inserted in all permits for the removal of bridges being replaced in whole or in part by the newly permitted bridges where removal thereof is required as a condition of the permit. Normally 90 days for removal after completion of the new bridge or opening to land transportation, whichever occurs first, may be allowed.

[CGD 75-046, 40 FR 24898, June 11, 1975, as amended by CGD 80-099, 46 FR 38354, July 27, 1981. Redesignated by USCG-2016-0498, 82 FR 35081, July 28, 2017]

§ 115.20 Permit bonds.

When compensatory works or the removal of temporary structures should be required of the permittee, or in other unusual cases when there is reason to anticipate that the permittee may fail to carry out parts of the work that are against his interest, an additional condition will be included in the permit requiring the permittee to furnish a bond insuring compliance with the permit requirements.

[CGFR 67-46, 32 FR 17771, Dec. 12, 1967. Redesignated by USCG-2016-0498, 82 FR 35081, July 28, 2017]

§ 115.30 Transfer of permits.

Permits express merely the assent of the Federal Government so far as concerns the public rights of navigation. Although issued to a specific party, the assent is not limited to execution of the work by that party and may be availed of by the assignees or purchasers of the property affected, provided the terms of the instrument are strictly complied with.

[CGFR 67-46, 32 FR 17771, Dec. 12, 1967. Redesignated by USCG-2016-0498, 82 FR 35081, July 28, 2017]

§ 115.40 Bridge repairs.

Repairs to a bridge which do not alter the clearances, type of structure, or any integral part of the substructure or superstructure or navigation conditions, but which consist only in the replacement of worn or obsolete parts, may, if the bridge is a legally approved structure, be made as routine maintenance without a formal permit action from the U.S. Coast Guard.

[CGFR 67-46, 32 FR 17771, Dec. 12, 1967, as amended by USCG-2012-0306, 77 FR 37314, June 21, 2012]

§ 115.50 Application for bridge permits.

- (a) **Application.** An application for authorization to construct a bridge across navigable waters of the United States must include the name, address, telephone number, and email address of the applicant; the waterway and location of the bridge; a citation to the applicable act of Congress; when appropriate, a citation to the State legislation authorizing the bridge; a map of the location and plans of the bridge showing the features which affect navigation; papers to establish the identity of the applicant. Additional guidance on completing the application can be found in the Bridge Permit Application Guide, COMDTPUB16591.series.
- (b) **Prior authority necessary.** Except as provided under paragraph (c) of this section, a bridge cannot lawfully be constructed across any navigable waterway of the United States until the location and plans have been approved by the Coast Guard.
- (c) **Prior authority not necessary.** Coast Guard approval of the location and plans for construction or modification of a bridge or causeway is not required for any bridge or causeway over waters which are not subject to the ebb and flow of the tide and which are not used and are not susceptible to use in their natural condition or by reasonable improvement as a means to transport interstate or foreign commerce, whether or not such waters were used or were susceptible to use, at some previous time, to transport commerce (historic use). This provision does not apply to bridges which connect the United States with any foreign country.
- (d) **Signature.** In case of signature by an agent or by an official of a corporation, a duly authenticated copy of the authority for the action must accompany the application.
- (e) **Identification.** If the applicant is a corporation, it must furnish certified copies of the following papers, all properly authenticated: The charter or articles of incorporation; the minutes of organization; an excerpt from the minutes showing the names of the present officers of the corporation.
 - (1) Where State laws vest in State or county officers, such as boards of supervisors and county courts, the power to authorize the construction of bridges, they must furnish with their application certified excerpts from their proceedings showing their action authorizing the proposed structure.
- (f) **Plans.** One reproducible set of plans must be submitted with the application, on which the location of the work and the essential features covered by the application will be identified. Each drawing must have a title block located in the lower right-hand corner identifying the applicant/agent and bridge owner; the waterway; the milepoint on the waterway of the bridge location; the city, county, and state of the bridge location; the name of the bridge; the date of the plans; the sheet number; and the total number of sheets in the set.

- (g) **Size of sheets.** The drawings will be on letter size sheets. As few sheets will be used as necessary to show clearly what is proposed.
- (h) **Special instructions.**
 - (1) Vertical and horizontal distances will be shown using bar scales. The north and south line will be indicated by a meridian arrow. Soundings and elevations will be shown in feet and refer to the established Government datum plane at the locality.
 - (2) The direction of the current or, for tidal waters, the direction of the ebb and flow, will be indicated by arrow(s), and will be shown close to the proposed location of the bridge, and at both ends of the waterway shown on the map of location.
 - (3) The plans will show in figures the least clear height of the lowest part of the superstructure over navigation openings, with reference to the planes of mean high water and mean low water if the bridge is to cross tidal water. If the waters are nontidal, the least clear height will be shown with reference to the planes of extreme high water and mean low water. If records of river heights are available, the 2 percent flowline (the plane above which flood waters have not remained more than 2 percent of the time) will be indicated. Reference will also be made to other datum planes if appropriate for the waterway in question.
 - (4) If harbor lines have been established at the site of the bridge, their position will be shown on the plans.
- (i) **Structural details.** Only those should be shown which are needed to illustrate the effect of the proposed structure on navigation. If the bridge is to be equipped with a draw, the latter will be shown in two positions: Closed and open. In those cases, the vertical and horizontal clearances shall be indicated in both the closed and open positions.
- (j) **To whom application should be presented.** The application and the papers and plans accompanying it should be submitted to the District Commander having jurisdiction over the area in which the bridge site is located.

[CGFR 67-46, 32 FR 17771, Dec. 12, 1967, as amended by CGD 75-046, 40 FR 24898, June 11, 1975; CGD 80-099, 46 FR 38354, July 27, 1981; CGD 82-102, 48 FR 54299, Dec. 2, 1982; USCG-2011-0257, 76 FR 31836, June 2, 2011; USCG-2012-0306, 77 FR 37314, June 21, 2012; USCG-2016-0498, 82 FR 35081, July 28, 2017; USCG-2024-1103, 90 FR 52877, Nov. 24, 2025]

§ 115.60 Procedures for handling applications for bridge permits.

The following procedures will be observed in the handling of applications for permits to construct, modify, or replace bridges over navigable waters.

- (a) **District Commander's review of application and plans.** When an application is received, the District Commander verifies the authority for construction of the bridge, reviews the application and plans for sufficiency, ascertains the views of local authorities and other interested parties, and ensures that the application complies with relevant environmental laws, regulations, and orders. If the application contains any defects that would prevent issuance of a permit (as for example, if the proposed bridge provided insufficient clearance), the applicant is notified that the permit cannot be granted and given reasons for this determination. The applicant may then request that the application be considered by the Commandant. If the applicant makes such a request, or if the application is not found defective, the District Commander notifies the public that it has been received and continues its processing.

(b) **Public meeting.**

- (1) Public meetings will be held when there are substantial issues concerning the effect that the proposed bridge will have on the reasonable needs of navigation.
- (2) Notice of the public meeting will be published in the FEDERAL REGISTER. Notice of the meeting is also emailed or mailed to State, county, municipal authorities, and all other known interested parties. It may also be posted in public places in the vicinity of the project or published in local publications and through local media channels, or both.
- (3) Meetings are public and conducted in an informal manner. A designated Coast Guard official presides. The submission of written statements is invited and encouraged. Anyone desiring to do so may speak. Statements, written or oral, are not under oath, and cross-examination is not permitted. No fixed order has been established for the presentation of evidence or argument although proponents are generally heard first, followed by opponents with full opportunity afforded for rebuttals.

(c) **Report and recommendations.** After the close of the comment period and any public meeting, a detailed statement of findings, conclusions, and recommendations based on all available information (including Coast Guard records and experience) is prepared. The following factors may be discussed in this report:

- (1) Comparison of proposed bridge with existing bridges over the waterway; attitude of local authorities; summary of objections raised by the public, and District Commander's comments or responses; probable effect on navigation, present and prospective.
- (2) Description of the navigation on the waterway past the site of the proposed bridge, the number and type of vessels, the number of vessel trips, and the principal method of handling traffic, whether in single vessels or in tows.
- (3) Whether the District Commander approves, or recommends approval of the plans. If they are found objectionable, the reasons for this finding will be stated. If there are objectionable features in the plans which may be corrected, the applicant is given an opportunity to revise them. If approval is given or recommended, all conditions to which the permit should be subject will be stated.

(d) **Action on permit application.**

- (1) The District Commander may issue the permit if authorized under § 1.01-60(b) of this chapter; otherwise, a report with the application shall be submitted to the Commandant for final action.
- (2) When an application is approved, the issuing official signs the permit and transmits it to the applicant.
- (3) When an application is not approved, the applicant is notified and provided with reasons for the disapproval and suggestions for modifications that would justify reconsideration, if appropriate.
- (4) If an application is disapproved by the District Commander, the applicant may appeal this decision to the Commandant under § 114.50 of this chapter. The Commandant's determination shall constitute final agency action.

(e) **Permit amendments.** Applications for amendments to permits will be processed in the same manner as permit applications. The District Commander may approve amendments to any permits which that official is authorized to issue under § 1.01-60(b) of this chapter. All other amendments must be approved by the Commandant.

(5 U.S.C. 559; 14 U.S.C. 503; 33 U.S.C. 401, 491, 499, and 525; and 49 CFR 1.46(c) and (q))

[CGD 80-099, 46 FR 38354, July 27, 1981; 46 FR 42268, Aug. 20, 1981, as amended by CGD 82-006, 47 FR 36641, Aug. 23, 1982; CGD 82-074, 47 FR 51865, Nov. 18, 1982; USCG-2008-0179, 73 FR 35012, June 19, 2008; USCG-2010-0351, 75 FR 49410, Aug. 13, 2010; USCG-2012-0306, 77 FR 37314, June 21, 2012; USCG-2013-0397, 78 FR 39174, July 1, 2013; USCG-2020-0304, 85 FR 58278, Sept. 18, 2020; USCG-2022-0323, 88 FR 10029, Feb. 16, 2023; USCG-2024-1103, 90 FR 52877, Nov. 24, 2025]

§ 115.70 Advance approval of bridges.

- (a) The General Bridge Act of 1946 requires the approval of the location and plans of bridges prior to start of construction (33 U.S.C. 525). The Commandant has given his advance approval to the location and plans of bridges to be constructed across reaches of waterways navigable in law, but not actually navigated other than by logs, log rafts, rowboats, canoes and small motorboats. In such cases the clearances provided for high water stages will be considered adequate to meet the reasonable needs of navigation. The Coast Guard recommends notice to the District Bridge Manager to ensure that the District has determined that advance approval provision is applicable to the waterway reach over which the bridge is to be constructed.
- (b) The term “small motorboats” shall be interpreted in the light of the things and conditions with which it is associated. The term means rowboats, canoes and other similar craft with outboard motors. It does not include sailing or cabin cruiser craft.

(14 U.S.C. 503; 33 U.S.C. 401, 491, and 525; and 49 CFR 1.46(c))

[CGFR 67-46, 32 FR 17771, Dec. 12, 1967, as amended by CGD 81-076, 46 FR 54936, Nov. 5, 1981; USCG-1998-3799, 63 FR 35527, June 30, 1998; USCG-2013-0397, 78 FR 39174, July 1, 2013; USCG-2020-0304, 85 FR 58278, Sept. 18, 2020]